CITY OF SHORELINE

SHORELINE CITY COUNCIL
SUMMARY MINUTES OF REGULAR MEETING

Monday, June 21, 2021 Held Remotely via Zoom
7:00 p.m.

PRESENT: Mayor Hall, Deputy Mayor Scully, Councilmembers McConnell, McGlashan, Chang, and Robertson

ABSENT: Councilmember Roberts

1. CALL TO ORDER

At 7:00 p.m., the meeting was called to order by Mayor Hall who presided.

2. ROLL CALL

Upon roll call by the City Clerk, all Councilmembers were present with the exception of Councilmember Roberts. Councilmember McConnell moved to excuse Councilmember Roberts for personal reasons. The motion was seconded by Deputy Mayor Scully and approved by unanimous consent.

3. APPROVAL OF THE AGENDA

The agenda was approved by unanimous consent.

4. REPORT OF CITY MANAGER

Debbie Tarry, City Manager, provided an update on COVID-19 and reported on various City meetings, projects and events.

5. COUNCIL REPORTS

Councilmember Chang reported that she attended the Sound Cities Association (SCA) Caucus meeting, as well as the regular meeting of the Regional Transportation Committee. She noted that Metro will be instituting its Fall 2021 service changes in October, in conjunction with the opening of the Northgate Light Rail Station.

6. PUBLIC COMMENT

Tamra Smilanich, Seattle resident, shared information on the City of Yelm's Resolution regarding COVID-19 vaccination information. She expressed concern with health information privacy violations. She urged Shoreline to protect individual's privacy and right of choice.

Ed Yasakawa, Seattle resident, spoke against vaccination requirements in the workplace as a violation of personal liberty.

Jackie Kurle, Shoreline resident, spoke regarding the Enhanced Shelter. She supports the cause of helping the homeless and encouraged ongoing monitoring and oversight of activities at, and near, the Shelter and asked the City to formulate and enforce more specific reporting metrics.

7. CONSENT CALENDAR

Upon motion by Deputy Mayor Scully and seconded by Councilmember Robertson and unanimously carried, 6-0, the following Consent Calendar items were approved:

(a) Adoption of Ordinance No. 935 - Extension of Interim Regulations to Allow for Additional Extensions of Application and Permit Deadlines Beyond Those Provided for in the Shoreline Municipal Code Due to COVID-19 Impacts

(b) Adoption of Ordinance No. 936 - Extending Interim Regulations for Outdoor Seating

(c) Authorize the City Manager to Execute an Amendment to the Professional Services Agreement with Osborn Consulting in the Amount of $167,201 for the 2021-2022 Stormwater Pipe Repair and Small Drainage Projects

8. STUDY ITEMS

(a) Discussion of 2020 Police Services Report

Shawn Ledford, Shoreline Police Chief and Ryan Abbott, Operations Captain, jointly delivered the staff presentation. Chief Ledford reviewed the current staffing, with 54 FTEs assigned to Shoreline, and seven vacancies for commissioned staff. He said hiring and retention of officers is a problem and it can be a challenge to meet minimum staffing. Captain Abbott reviewed the contact data, stating that there was a total of 22,690 contacts in 2020, of which 14,949 were dispatched calls for service. He said there was a general decrease in numbers, primarily due to COVID-19. A graphic of response times, by priority level, was displayed and it was stated that in 2020 traffic collisions decreased by nine percent and citations decreased by 67 percent. In a review of crime trends by category it was noted that the 300 percent increase in fraud was due to fraudulent unemployment claims. Captain Abbott described some of the 11 hate crime instances in 2020, seven of which were graffiti. He displayed a graph of the types of force used in the 2020 contacts, stating that only 15 of the 22,690 contacts resulted in a use of force, and shared details on each type. Chief Ledford displayed a list of the 2021 legislative changes affecting policing and described each one and the challenges in practical implementation that are being considered. He concluded by stating that the Shoreline Police do a good job in de-escalation, but law enforcement may not be in a position to be the default for crisis calls with the implementation of these legislative changes.

Regarding the legislation around the State v. Blake decision, Councilmember Chang said she is concerned with some of the quality of life aspects. She asked if this decision makes it

voluntary as to whether an individual has to respond to a referral. Chief Ledford responded that there are several upcoming meetings scheduled on how this new law should be implemented and he will return to Council in August to provide an overview.

The differences between reasonable suspicion and establishing probable cause were discussed and Chief Ledford explained how House Bill 1310 prohibits detaining suspects unless there is probable cause, whereas before it could done with the lesser standard of reasonable suspicion. Deputy Mayor Scully respectfully disagreed that probable cause is too high of a standard, and said he believes the recent legislative changes are less dramatic than the perception is and he looks forward to future discussions.

Reviewing crime trends, Deputy Mayor Scully asked what 2020 would look like if unemployment fraud was removed from the numbers. Chief Ledford said aside from the employment fraud he is not aware of any increases in other types of fraud.

On the topic of race and policing, Deputy Mayor Scully asked about collecting data on perception of race during traffic stops and on views to see if they are in proportion to the racial percentage of the population. He also suggested asking 911 callers questions that would help determine if race is influencing a perception of suspicious activity. Mayor Hall commented that if traffic cameras were in use for some forms of enforcement, data could be collected from a system that does not perceive race. He agrees with the concern and the importance of ensuring that policing is not race based. Councilmember Chang asked if traffic stop data can be expected to correlate with the racial population of Shoreline since commuters account for a portion of all traffic. Chief Ledford said he hopes that a statewide tracking method will be implemented. He spoke to the implicit bias training police officers participate in and said that heightened awareness of bias and better data will help make improvements.

Councilmember Chang asked what to do about the increase in property crime. Chief Ledford responded that increasing community outreach about crime prevention techniques would be helpful. Deputy Mayor Scully encouraged him to let the Council know if they need more resources.

Councilmember Robertson mentioned that this evening's national news reported on the nationwide hiring crisis and low morale among police agencies. She then thanked Shoreline Police for their hard work, stating that she is looking forward to a continued partnership in making improvements. She asked about the amount of prostitution seen immediately to the south of Shoreline, and what can be done about it. Chief Ledford said officers have the authority to talk to sex workers and ask if they need help and advise them that they cannot work in Shoreline.

Regarding use of force, Councilmember Robertson said she wants to review the report on the police shooting that occurred in Shoreline and asked for a timeline on when it will be available. Chief Ledford said due to the ongoing outside agency investigation and inquest protocol, very little information is available to him. Deputy Mayor Scully clarified that the graph of percentages of the types of force used breaks down the 15 occurrences in Shoreline in 2020. He suggested that it would be good to display that data in numbers, because the graph creates a different perception.

Mayor Hall asked why the number of collisions dipped a little bit when driving dropped a lot in 2020. Chief Ledford replied that the significant drop in enforcement could be a cause since enforcement typically decreases number of collisions.

(b) Discussion of Ordinance No. 937 - Amending the Shoreline Municipal Code to Add Chapter 10.22 Street Racing

Margaret King, City Attorney; and Ryan Abbott, Police Operations Captain, delivered the staff presentation. Captain Abbott displayed a video of street racing and said it occurs at least two weekends a month, and often the Police have no forewarning about this dangerous activity. Ms. King said street racing brings both participants and spectators that block streets and intersections, resulting in serious injuries and accidents, as well as other criminal activities and acts of violence. Recent local occurrences and their effects on neighboring communities were described. Ms. King said the proposed regulations broadly define street racing and spectators and listed the charges that could be brought against violators. Captain Abbott described the ways spectators participate, and described the dangers associated with it. Ms. King said the proposed Ordinance designates 'No Racing Zones' in which Stay Out of Areas of Racing (SOAR) orders could be imposed and described the locations designated, as well as the repercussions of violation. Captain Abbott elaborated that by not limiting a time of day that the restrictions are in effect eliminates any likelihood of offense outside of a particular timeframe. Ms. King said that the Ordinance does not include a summary impoundment provision because it is questionable whether a summary impound would be upheld in court and Captain Abbott said impoundment determinations would be done on a case-by-case basis.

In reviewing the Ordinance, Councilmember McGlashan is glad to see intersection takeover is included; and he asked why the no racing areas are limited to three roads and if private property could also be designated as no racing areas. Captain Abbott responded that the roads listed are where they have found the racing to be occurring, however they could look at expanding it if it becomes a problem elsewhere. Ms. King elaborated on reasons for only designating three areas and clarified that while a citation for street racing can be issued anywhere, enforcement of a SOAR order would allow the Police to issue a citation if the violator is found driving anywhere in the City. Violations on private property would be trespassed, rather than cited. Councilmember McConnell agreed that eliminating time restrictions from the regulations makes sense. She is glad that this is being considered because of the safety issues and the secondary crimes associated with street racing.

Councilmember Robertson said she has heard more and more racing in the City during lockdown and asked if these instances are likely to decrease ones the pandemic restrictions are lifted. Captain Abbott said he does not see it going away. Councilmember Robertson asked if jurisdictions with SOAR have seen a decrease in activity, and Captain Abbott shared information on Kent's decreased activities due to the racing ordinance. Councilmember Robertson asked what happens when police arrive on scene in these instances, and Captain Abbott shared some examples of the dangerous situation it puts officers in. He said it is a constant struggle to find information on upcoming races and all the agencies work together and communicate since it moves from city to city.

Deputy Mayor Scully is cautious about this type of regulation because of the unintended consequences that can be associated with enforcement. He is generally fine with the

Ordinance, but he has a problem with impounding vehicles and shared his reasons why. He does not have a problem with a court ordering an impoundment as a condition of a sentence, but he is not in favor of officers having the authority to impound. Mayor Hall agreed on the importance of due process; but noted that street racing cars are built to race and removing the car from the offender could be an effective deterrent and prevent this behavior in the future. He would be in favor of getting regulations in place sooner rather than later, since it is a priority issue to the community, and if issues come up Council could refine it later. Councilmember Chang said she would be okay impounding the car from the driver on scene, because of the associated danger. Ms. King clarified that under a reckless driving offence, an officer does have the ability to impound a vehicle, if it meets the requirements. The Ordinance states that Courts can only order impoundment after the individual has been convicted.

Councilmember McGlashan asked for an explanation of after the fact prosecution, which is allowed in this Ordinance. Captain Abbott said there has to be proof of who the driver is to charge them at a later date.

It was agreed that Ordinance No. 937 would return as an Action Item.

(c) Discussion of COVID-19 Vaccination Policy

John Norris, Assistant City Manager, delivered the staff presentation. Mr. Norris stated that this discussion of a mandatory COVID-19 vaccination policy was sponsored by Mayor Hall. He stated that the proposed policy would require vaccination as a condition of employment and of in-person attendance at City Council meetings and indoor events sponsored by the City for any member of the public. Mr. Norris underscored the tremendous impact of the pandemic and emphasized the importance the City puts on safety. He said that vaccines are the best protection against contracting and spreading COVID-19.

Mr. Norris said the Council has the authority to issue a mandatory vaccination policy, but it would have to provide for exemptions for medical and sincerely held religious reasons. He said staff could not identify any State government agency that has adopted mandatory COVID-19 vaccination policies. He shared the potential consequences of this policy and observed that most employers are focusing on incentivizing, rather than mandating, vaccination.

Mr. Norris summarized the COVID-19 vaccination status statistics of current City employees and described the prevention protocols in place, both currently and for when City facilities reopen. He concluded by stating that the City Manager does not recommend adoption of mandatory COVID-19 vaccination policies and listed the policy questions that staff would like feedback on.

In discussion of a mandatory vaccine policy for City employees, Councilmember Chang said safety of employees is her primary concern, so she can see compelling reasons to require vaccination to protect the people who have made the choice that is good for public health. She would like to explore what a policy would look like and to see what the Union requirements would be. Councilmember Robertson is not comfortable mandating vaccination for employees and imagines it might be hard to track the validity of exemptions. Councilmember McConnell asked about the purification of City Hall's air flow and Mr. Norris described the air purifying

interventions at City facilities and confirmed that City Hall has a very advanced HVAC system. Councilmember McConnell said she supports the City Manager and will honor her recommendation. She does not want to mandate vaccinations for current employees, but it may be worth considering as a requirement for future employees. Councilmember McGlashan is comfortable with the current policy and does not support mandatory vaccination requirements. Deputy Mayor Scully clarified that termination of employment is a potential recourse for both employees who are exempt from vaccination and those who choose not to vaccinate. Mayor Hall said it is important to get beyond personal preferences in this policy discussion and focus on trying to balance the health and safety of all employees and the freedoms and privacy and comfort of employees and members of the public. In this case, the safety of employees is the most important. If employees are required to return to the workplace, the most vulnerable need to be protected. He said Courts have found that employers may mandate vaccination, recognizing that a small intrusion of personal rights versus a huge benefit to public safety. He agreed that this conversation is starting early but recognized that it takes months to work these things out. He said he would like this to come back for continued discussion. Deputy Mayor Scully said he agrees with the Mayor on vaccination requirements for employees.

In consideration of a mandatory requirement for the public, Councilmember Chang recognized that while the reasons are the same, accommodations are more difficult to enforce while keeping City services and government accessible. Councilmember McConnell would like to see masking required for in-person participation. Councilmember McGlashan said he would like to see remote meetings continue until there is better data available. Deputy Mayor Scully is not on board with a requirement for the public, especially because it would be difficult to enforce. Councilmember Robertson encouraged everyone eligible to get vaccinated, but she is only comfortable with going as far as educating and encouraging people to get vaccinated.

Reviewing the discussion thus far, Mr. Norris said he did not hear support for a mandate for a vaccination requirement for the public but did hear a split preference from Council on mandating vaccination for employees. Ms. Tarry agreed with the importance of employee safety and said she would like to commit to a continued monitoring of what is happening with public health and other employers and update Council as trends are identified.

Councilmember McConnell said she would support waiting to decide on future action until more monitoring has taken place. Councilmember Chang asked if there is any indication of where the State is headed with requirements in Phase 4. Ms. Tarry said it is her understanding that the Governor is planning to lift most restrictions when the state reopens on June 30. Councilmember Chang said if protecting employees is important, there is no reason to wait on this decision.

Councilmember Robertson asked what the expectation for employees is upon reopening next month. Mr. Norris said right now an Ongoing Remote Work Policy is being created and departmental staffing plans are being drafted for a phased reopening to safely accommodate the public being on site, but not all staff are being brought back at this time. He outlined the adjustments made to prevent transmission, which include plexiglass dividers for workstations accessible to the public, and masking requirements in all common areas. Councilmember Robertson asked how the youth are being kept safe in summer programs and Mr. Norris outlined the protocols in place. Ms. Tarry elaborated on the City's Phase 1 reopening plans that

narrow the purpose of the public coming to City Hall. Councilmember McGlashan asked what the Police will be doing during Phase 1 of reopening, and Ms. Tarry said they are under the same regulations and to her knowledge there is no mandate for vaccination for King County employees.

Mayor Hall summarized that there is not sufficient interest from Council to require a specific proposal be brought back at this time. He reminded everyone that the third wave of the pandemic took place while a mask mandate was in effect and he encouraged people to get vaccinated if able.

9. ADJOURNMENT

At 9:33 p.m., Mayor Hall declared the meeting adjourned.

/s/Jessica Simulcik Smith, City Clerk